U.S. Department of State

FEDERAL ASSISTANCE AWARD

1. Recipient Name PARTNERS OF THE AMERICAS, INC.	2. Assistance Type: ☐ Cooperative Agreement ☐ Fixed Amount Award ☒ Grant ☐ Property Grant ☐ Voluntary Contribution
3. Address 1424 K ST NW STE 700 WASHINGTON, DC 20005-2410 USA	
4. Recipient POC: DEBRA COOPER Phone Number: 2024151174 Email: DCooper@partners.net	

5. Type of Entity U.S. Non-Profit Organization	6. Unique Entity Identifier DD5WNYRUYFE5	7. EIN/ TIN **********
8. Assistance Listing Number 19.415	9. Statutory Authority for Assistance Fulbright-Hays	10. Award Number SECAGD25GR0046
11. Period of Performance Start Date 2025-09-30 End Date 2027-09-30		12. Amendment Number
13. Accounting and Appropriation Data 1900-2025--19___X02090000-1072-ECA-2321--SECAGD25GR0046-4121-------2025FDSTR990209-SECAGD25GR0046-- $244,129.00		14. Funds Certified By Megan McElrath Megan McElrath

Funding Distribution

15.	Total Prior Costs	New Costs	Total Cost
U.S. Share of Costs		$244,129.00	$244,129.00
Recipient Share of Costs		$73,870.00	$73,870.00
Total Costs		$317,999.00	$317,999.00

16. Purpose of the Federal Award Activity

The program will support a grant for approximately 20 participants on individual and group exchanges (inbound and outbound) and approximately three community-led project subawards to Partners' network organizations.

17. Specific Award Conditions

☐ Attached

Agreement

The recipient agrees to execute the work in accordance with the Notice of Award, the approved application incorporated herein by reference or as attached, and 2 CFR Parts 200 and 600 including any subsequent revisions.

18a. Recipient Name John McPhail		19a. Grants Officer Name Blair K Robinson	
18b. Recipient Signature John McPhail (electronically signed)		19b. Grants Officer Signature Blair K Robinson (electronically signed)	
18c. Title	18d. Date (dd-mmm-yyyy) 2025-09-26 15:45:52	19c. Bureau/Office/Post GRANTS DIV (ECA-IIP/EX/G)	19d. Date (dd-mmm-yyyy) 2025-09-24

By signing this Federal award, the recipient acknowledges that it will comply with Federal regulations, the Terms and Conditions, and any Special Award Conditions associated with this award. Receipt of the recipient's signature and return of the Federal Award Coversheet is required within ten (10) business days of the Grants Officer's signature. Please return to the Grants Officer address indicated here:

U.S. DEPARTMENT OF STATE
AWARD PROVISIONS

During the period of performance, the Recipient must comply with:

- The Award Provisions below;
- The Department of State Standard Terms and Conditions for Federal Awards, which are incorporated by reference and made part of this Federal Award. Electronic copies containing the complete text are available at:
- https://www.state.gov/about-us-office-of-the-procurement-executive/;
- The applicable sections of 2 CFR §200 and 2 CFR §600; and
- All assurances and certifications made during the application process.

1) FEDERAL AWARD IDENTIFICATION NUMBER (FAIN):
SECAGD25GR0046

2) FEDERAL SHARE OF AWARD:
$ 244,129.00

3) PURPOSE AND OBJECTIVES OF AWARD:

a. **Purpose:**
Partners of the Americas (hereinafter referred to as the Recipient), is hereby provided a federal award, the purpose of which is to support the FY 2025 Partners of the Americas Program (formerly the Traditional Public-Private Partnership Program).

Partners of the Americas (Partners) projects offer capacity building for volunteers, civic leaders, educators, and professionals in the United States and 31 eligible countries in Latin America and the Caribbean (LAC) within the Western Hemisphere Affairs region (WHA). Through exchange and collaborative action, participants design and implement local solutions, share effective practices, and develop lasting relationships across the hemisphere. Partners will support 20 participants—approximately four (4) through Individual Self-Designed Exchanges and 16 through Group Pre-Designed Exchanges—each lasting 7 to 10 days, excluding international travel. Three (3) community-led projects will also be supported through sub-awards to member organizations within the POA network. The FY 2025 programs will focus on the following themes: Education, Citizen Security, Economic Success, and Opportunities in STEM.

The Recipient shall carry out this award in accordance with its proposal dated September 15,, 2025, and any revisions to which both parties agree to in writing. The Recipient's proposal and any subsequent negotiated revisions are hereby incorporated by reference.

Specifically, the Recipient's responsibilities include, but are not limited to, the responsibilities identified in the Project Objectives, Goals, and Implementation (POGI) and Notice of Funding Opportunity (NOFO) number DFOP0017214. The POGI and NOFO are hereby incorporated by reference and made an integral part of this Agreement. A copy of POGI and NOFO may be downloaded from MyGrants or obtained by written request to the Grants Officer.

b. **Objectives and Expected Outcomes**: The Recipient agrees to perform the program and meet the specific objective below:

Objective 1: to strengthen the professional skills and global perspectives of emerging and established U.S. and foreign leaders and organizations through project funding and people-to-people exchanges.

Objective 2: to support safer, stronger, and more prosperous communities across the Western Hemisphere by increasing the participation of applicants and alumni throughout program planning and implementation, focusing on the U.S. Department of State (DOS) foreign policy priorities, including economic opportunity, citizen security, education, and opportunities in STEM.

Results/Outcomes:

Result 1: Participants gain practical experience and tools to address shared priorities in their home communities.

Result 2: Participants report increased understanding of international perspectives.

Result 3: Participants share personal experiences that amplify U.S. public diplomacy goals.

Result 4: Participating chapters and organizations expand their ability to deliver impactful projects with U.S. support. Projects contribute to practical solutions and learning that can be shared across the network.

Within the MyGrants Results Performance Monitoring (RPM) module, the Recipient reviewed and approved Monitoring Data for ECA (MODE) Framework objectives applicable to achieving the program's goal(s). to measure progress towards articulated goals. In the approved RPM [MODE] Proposal, required indicators are listed for each objective to measure progress.

The Recipient can return to the RPM [MODE] Proposal at any time to review the required MODE objectives and indicators by navigating to the following link:

https://mygrants.servicenowservices.com/mygrants?id=mygrants_list&table=x_g_usd4_d_grant_application&view=Default%20view&filter=sys_class_name%3Dx_g_usd4_d_grant_application%5Eapplicant_organization_individualLIKEPartners%20of%20the%20Americas&o=number&d=desc&open_table=x_g_usd4_d_grant_application&open_sys_id=83968057870a0a1020b862060cbb35e8

Every indicator includes required data collection either through compiling existing program data, or surveying participants at the end of their program. The Recipient may use their own survey platform to collect data from participants, or can use the ECA-provided survey platform, Qualtrics, to collect these data. While the use of Qualtrics is optional, there are differences in the reporting requirements. See the "Section 13: Reporting and Monitoring" below for more information.

The RPM module enables users to report performance monitoring data in the same system where you currently manage federal assistance actions. The MODE indicator data will provide ECA with bureau-wide, uniform reporting that is already linked with other elements of the awards and provides supplemental information to the Performance Progress Reports (see Section 13 below). ECA will use reported data to better understand how each program contributes to the overall objectives of the Bureau as well as measure progress towards those objectives.

For further guidance on the MODE Framework and Recipient requirements, please use the MODE Troubleshooter: https://tinyurl.com/MODETroubleshooter.

The Recipient agrees to carry out the objectives of this project and measure the indicators in the PMP and in accordance with the project work plan detailed in its proposal.

4) CONTACT INFORMATION

a. Grants Officer:
Toyin Fasakin
Office of the Under Secretary for Public Diplomacy (R)
Office of Policy, Planning, and Resources, Executive Office (R/PPR/EX)
U.S. Department of State
Telephone: 202-904-0721
Email: fasakintj@state.gov

b. Grants Officer Representative:
Copeland Barnes

ECA/PE/C/GL
U.S. Department of State
Telephone: 771-205-6717
Email: barnescl@state.gov

5) AUTHORIZED BUDGET SUMMARY:

Unless otherwise stipulated, funds provided under this award may only be expended on authorized activities which take place during the period of performance.

Budget Categories	New Costs	Total Costs
1. Personnel	$76,086	$76,086
2. Fringe Benefits	$17,857	$17,857
3. Travel	$71,898	$71,898
4. Equipment	---	---
5. Supplies	$234	$234
6. Contractual	$39,200	$39,200
7. Construction	---	---
8. Other Direct Costs	$7,011	$7,011
9. Total Direct Costs (lines 1-8)	$212,286	$212,286
10. Indirect Costs (15%)	$ 31,843	$ 31,843
11. U.S. Share of Costs (lines 9-10)	$244,129	$244,129
12. Recipient Share of Costs	$73,870	$73,870
13. Total Costs (lines 11-12)	$317,999	$317,999

6) INDIRECT COSTS:

Indirect expenses of the Recipient are based on a de minimis rate of up to 15 percent of Modified Total Direct Costs (MTDC) in accordance with 2 CFR §200.414(f). MTDC means all direct salaries and wages, applicable fringe benefits, materials and supplies, services, travel, and up to the first $50,000 of each subaward (regardless of the period of performance of the subawards under the award). MTDC excludes equipment, capital expenditures, charges for patient care, rental costs, tuition remission, scholarships and fellowships, participant support costs and the portion of each subaward in excess of $50,000. 2 CFR §200.1 definitions for MTDC and for participant supports costs are found here. Other items may only be excluded when necessary to avoid a serious inequity in the distribution of indirect costs, and with the approval of the federal cognizant agency for indirect costs.

7) PRE-AWARD COSTS:

N/A

8) PROGRAM INCOME:

Deduction: Any program income earned by the Recipient as a result of this award and during the period of performance must be deducted from the total allowable costs, reducing the overall total amount of the Federal award.

9) COST SHARING:

It is understood and agreed that the Recipient must provide the minimum amount of cost sharing as stipulated in the Recipient's approved budget. Cost sharing may be in the form of allowable direct or indirect costs. The Recipient must maintain written records to support all allowable costs which are claimed as being its contribution. Such records are subject to audit. In the event the Recipient does not provide the minimum amount of cost sharing as stipulated in the Recipient's approved budget, the Department of State's contribution may be reduced in kind.

10) SUBRECIPIENTS:

Subawards not included in the Recipient's approved budget must be submitted to the Grants Officer prior to execution in order to determine cost allowability.
Any subawards must comply with the requirements of 2 CFR §200.332—Requirements for pass-through entities.

11) CHANGES IN SUBRECIPIENTS:

The inclusion of specific subrecipient(s) was not a determining factor in the merit review or eligibility process. Changes in subrecipient(s) do not require GO prior written approval.

12) PAYMENTS:

Payments under this award will be made through the U.S. Department of Health and Human Services (HHS) Payment Management System (PMS). Unless otherwise stipulated, the Recipient may request payments on a reimbursement or advance basis. Instructions for requesting payments are available at: https://pms.psc.gov/.

Advance payments must be limited to the minimum amounts needed and be timed to be in accordance with the actual, immediate cash requirements of the Recipient in carrying out the purpose of this award. The timing and amount of advance payments must be as close as is administratively feasible to the actual disbursements by the Recipient for direct program or project costs and the proportionate share of any allowable indirect costs.

Failure to comply with the terms and conditions of this award may result in payment delays.

13) REPORTING AND MONITORING:

The Recipient is required to submit semi-annual performance and semi-annual financial reports. The Recipient is required to submit Performance Reports and Financial Reports according to the reporting cycles and dates listed below. Performance Reports must be signed and include the following statement: “By signing this report, I certify to the best of my knowledge and belief that the report is true, complete, and accurate.” Financial Reports must be signed and certified.

Reports are due in accordance with the schedule below (30 days after the end of the reporting period for quarterly or semiannual reports or 90 days after the reporting period for annual reports). **Final performance and final financial reports are due 120 calendar days after the period of performance end date.** Failure to comply with these reporting requirements may jeopardize the Recipient's eligibility for future awards and/or delays in payments.

Performance Reports Schedule

Report	Report up through Range End Date	Report Due Date
1	March 31,2026	April 30,2026
2	Sept 30,2026	Oct 30, 2026
3	March 31, 2027	April 30,2027
4	Sept 30,2027	Oct 30,2027
Final	Dec 31, 2027	April 30, 2028

Financial Report Schedule

Report	Report up through Range End Date	Report Due Date
1	March 31,2026	April 30,2026
2	Sept 30,2026	Oct 30, 2026
3	March 31, 2027	April 30,2027
4	Sept 30,2027	Oct 30,2027

Final	Dec 31, 2027	April 30, 2028

Performance Reports:

The Recipient is required to submit two components for the performance reports: the Performance Progress Report and the MODE Framework Performance Report. If the Recipient is not participating in MODE, the Recipient will only submit the Performance Progress Report.

1) All performance reports must indicate the Federal Award Identifying Number (FAIN), period of performance, reporting period end date, reporting frequency (quarterly, interim, semi-annual, annual, final) and include a detailed description of program progress.

As appropriate, performance reports must contain:

- Progress toward achieving program objectives as included in section 3 of this award in a measurable way, referencing specific objectives, indicators, and activities.
- A comparison of actual accomplishments to the objectives of the federal award established for the period. This should include information relating financial data and accomplishments to performance goals and objectives;
- Explanation of any challenges to meeting established goals or objectives;
- Additional pertinent information including an analysis and explanation of cost overruns or high unit costs; and
- Any lessons learned, information on improving program outcomes, and how to foster the adoption of promising practices.

Additional Reporting Requirements:

Semi-Annual Programmatic Reporting Requirements. Semi-Annual programmatic reports, as appropriate and timely, should include the following information: General Program Activities. Reports should include significant program activities that occurred during the reporting period including: progress achieved towards stated program goals and objectives, successes achieved, and difficulties encountered or anticipated. Notable differences between proposed programmatic activities as presented in the proposal narrative and actual program implementation. Program activities. Updated exchange program description including but not limited to: final program schedule or agenda, particular programmatic challenges or successes, countries visited, media coverage, and U.S. embassy involvement. Special attention should be paid to reporting on the impact of any exchange activities to local institutions and communities and the potential for collaborative projects. Program outreach and promotion including a brief discussion of web-based platforms or social media efforts to: promote or enhance programmatic activities; encourage professional networking; build a comprehensive program identity; reach key constituent groups; and cultivate collaborative and sustainable relationships. Program Successes. Participant / alumni highlights or success stories. Every effort must be made to include photos of highlighted activities. Success stories may be circulated throughout senior leadership and shared with relevant public diplomacy offices in the Department. Special

attention should be paid to demonstrating the impact of the program on communities in both the United States and in the participant's home countries/communities. Engagement with the Public Diplomacy Section (PDS) including a brief summary of how PDS has been involved or been invited to support key programmatic activities. Evaluation including statistical results of any surveys or evaluation conducted of participants or new alumni. The results should be presented as percentages of respondents answering a question in a particular way, as well as the actual number of respondents (i.e. 11 out of 14 respondents answered "yes"; 75% of the respondents said that they would like to see more engagement from PDS, etc.) Final Program Report. A final program report should be submitted to ECA within 90 days following the conclusion of the grant and should include the following information: lessons learned and examples of successful program activities. The final report should clearly describe how administration of the program has strengthened the proposed program model and incorporated innovative approaches in the program design. Analysis of web-based platforms or social media efforts to promote or enhance programmatic activities, encourage professional networking, build a comprehensive program identity, reach key constituent groups, and cultivate collaborative and sustainable relationships. A brief discussion of PDS/U.S. embassy involvement as it enhanced or strengthened program objectives.

Performance reports must be submitted to the Grants Officers and Grants Officer Representative via MyGrants.

2) The MODE Framework Performance Reports consist of reporting data for the indicators identified per section 3. **A report must be submitted even if there is no MODE data for the reporting period.** Required content for the reports are listed below.

For guidance regarding data collection and completing the reporting requirements listed below, please review the MODE Resource Guide (https://tinyurl.com/MODEResourceGuide) or access the MODE Troubleshooter (https://tinyurl.com/MODETroubleshooter).

- If the Recipient does not have any MODE data to report, the MODE Framework Performance Report must contain:
  - Completed "Anticipated Results" section
  - A statement that there is no data to report in the "Executive Summary" section under "Narrative Reporting"

- If the Recipient uses their own survey system to collect MODE data, the MODE Framework Performance Report must contain:
  - Completed "Anticipated Results" section
  - Attached Raw Data Submission Template (https://tinyurl.com/2yner2z7) under "Attachment Details"
  - Aggregate results for each required indicator under "Indicator Results" section

- If the Recipient uses the ECA-provided survey platform, Qualtrics, to collect MODE data, the MODE Framework Performance Report must contain:
  - Completed "Anticipated Results" section

- Attached data report generated by Qualtrics under "Attachment Details"

The MODE Framework Performance Reports must be submitted to the Grants Officer Representative via MyGrants as a "Performance Report" under the "Monitoring" menu.

Financial Reports:

All financial reports must be submitted using form SF-425—Federal Financial Report. Financial reports shall be completed in the Payment Management system. Instructions for completing the SF-425 in PMS are available at: https://pms.psc.gov/.

The Recipient acknowledges that the Department of State may make site visits as determined by the Grants Officer.

14) SUBSTANTIAL INVOLVEMENT:

N/A

15) ACKNOWLEDGMENT OF DEPARTMENT OF STATE SUPPORT AND BRANDING AND MARKING REQUIREMENTS:

The Department of State Standard Terms and Conditions for Federal Awards requires that materials produced under a federal award be marked appropriately to acknowledge the support of the Department of State.

16) ADDITIONAL BUREAU/POST SPECIFIC REQUIREMENTS:

(a) **Close-Outs:**

If the Recipient does not have a Final Indirect NICRA rate 12 months after the project end date, the Grants Officer must close the award at the provisional rate and deobligate remaining funds. No further payments will be made to the recipient for NICRA rate increases, and the recipient will not owe the Department in case of rate decreases.

Alternatively, the Grants Officer is authorized to close the award at the provisional rate when the period of performance ends, without waiting the 12 months, with no further obligation on the part of the recipient or the U.S. government, if the recipient provides written agreement to close the award.

(b) **International Visitor Liaison:**

N/A

(c) **Travel Management Center:**

The Recipient will use its own travel agent.

(d) Insurance:

Participants will be enrolled under the Department's Accident and Sickness Program for Exchanges (ASPE):

i. The Recipient is responsible for providing health benefit information to each participant. The health benefit materials and reporting instructions will be provided to the Recipient by DOS.

ii. In the event of accident or illness, the Recipient shall assist, as appropriate, participants in the timely preparation, filing and resolution of claims, and inform the DOS Program Officer and the Department's ASPE Program Manager of developments. The Recipient shall also report participant's coverage dates. All ASPE information, including the health benefits guide and forms can be found at the following website: https://www.sevencorners.com/gov/usdos.

(e) Communication Guidance:

All recipient organizations must adhere to the branding and marketing strategy, as covered in Provision XVII of the Standard Terms and Conditions for U.S. Department of State assistance awards. This includes, but is not limited to, marking all materials created under the grant with a U.S. flag and with the phrase "Funding provided by the United States Government" for partially funded awards. Any exemptions require the recipient to seek a waiver from the Grants Officer.

Additionally, the Bureau of Educational and Cultural Affairs' (ECA) Communications Guidance outlines requirements and recommendations for program external communications, including branding, websites, social media, and press, for recipients of ECA grants and cooperative agreements. All recipient organizations who receive 51% or more of their funding from ECA to administer an exchange program are mandated to adhere to this guidance for that program's materials. Download the Communications Guidance, video templates, consent form, and approved logos at https://eca.state.gov/comms-guidance.

(f) Exchange Visitor Program Regulations (22 CFR 62)— J-1 Visa Administration:

Throughout the grant period, the Recipient is responsible for complying with regulatory requirements of the Exchange Visitor Program (J-1 Visa) that are applicable to the Sponsor, unless directed otherwise by the Department of State. The governing regulations can be found at: http://www.ecfr.gov/cgi-bin/text-idx?tpl=/ecfrbrowse/Title22/22cfr62_main_02.tpl. These regulatory requirements include, but are not limited to, oversight of the Alternate Responsible Officer(s), screening and selection of program participants, providing pre-arrival information and orientation to participants, monitoring of participants during the program, proper

maintenance and security of the Form DS-2019 and all other forms, record-keeping and reporting, and compliance with all of the other regulations and program requirements, as applicable. The information required in the pre-arrival information and the orientation is set forth in 22 CFR 62.10.

ECA will be responsible for issuing DS-2019 forms to the participants of this program.

(g) Taxes:

The Recipient is responsible for complying with all applicable tax treaties as well as all federal, state and local laws on tax withholding and reporting for all foreign participants funded under this Agreement.

(h) Program Specific Requirements:

The Recipient will Work with ECA to align all program activities with the goals of America 250.

(i) OFAC License Requirement:

i. Most financial and other transactions in or involving Iran by persons subject to U.S. jurisdiction are prohibited unless licensed by the U.S. Department of Treasury, Office of Foreign Assets Control (OFAC). ECA and its recipients (together with ECA, the "Licenses") are authorized under OFAC License No. IA- 8785a issued to ECA to engage in all transactions necessary in support of their mutual understanding exchange programs and authorized by this Agreement, including the exportation or re-exportation by the Recipient to Iran of goods, technology or software that are neither listed on the Commerce Control List under the Export Administration Regulations, 15 C.F.R. §§ 730 et seq. ("CCL items"), nor listed on the United States Munitions List established under Section 38 of the Arms Export Control Act (22 U.S.C. § 2778) ("USML items). Recipients are not authorized to export or re-export to Iran any goods, technology, or software that is a CCL or USML item. A separate license from OFAC would be required to engage in such transactions.

ii. Except as expressly authorized by the terms of this Agreement or otherwise by the Office of Foreign Assets Control or the Iranian Transactions Regulations, 31 C.F.R. § 560 (the "Regulations"), nothing in OFAC License No. IA- 8785a authorizes any transaction prohibited by the Regulations, nor does this license authorize any transfer of any property blocked pursuant to 31 C.F.R. § 535, or any other transaction prohibited under 31 C.F.R. Chapter V. The OFAC license also does not excuse noncompliance with any other law or regulation administered by OFAC or another agency (including reporting requirements) applicable to transaction(s) carried out pursuant to this Agreement, nor does it release anyone from criminal or civil liability for violation of any law or regulation.

iii. The transfer of funds authorized by OFAC License No. IA-8785a must be effected in a manner consistent with 31 C.F.R. § 560.516 and may not involve the debiting or crediting of an account of a person located in Iran or of the Government of Iran maintained on the books of a U.S. depository institution. Any transfer of funds through the U.S. financial system pursuant to the authorization set forth above should reference OFAC License No. IA-8785a to avoid rejection of the transfer.

iv. It is a condition of this Agreement, in accordance with OFAC License No. IA- 8785a and with 31 C.F.R. § 501, that the Recipient shall keep full and accurate records of all transactions engaged in pursuant to the authorization contained in this license and pursuant to this Agreement. Such records shall be made available for examination upon demand for at least five years from the date of each transaction. Such records shall clearly demonstrate the applicability the objectives set forth in this Agreement. (Attention is drawn to the recordkeeping, retention and reporting requirements of 31 C.F.R. §§ 501.601 and 501.602.)

v. As a condition of OFAC License No. IA-8785a, ECA is required on a quarterly basis to certify directly to OFAC that its recipients are and will continue to be in accordance with all of the conditions set forth in the ECA grant Agreement. ECA is also required to report to OFAC the circumstances of any situation in which a recipient has engaged in activity in contravention of an ECA Agreement or any provisions of 31 C.F.R. Chapter V. Accordingly, the Recipient shall submit a quarterly certification to ECA stating compliance with these conditions. The certification/statement should be in the form of an e-mail sent directly to the ECA program officer assigned to this program, copying the ECA Grants Officer. Please include the Assistance Award Number and period of time covered. Failure to submit timely reports may result in a revocation of OFAC's authorization to the Recipient.

vi. The Recipient shall submit a completed form DS-4100 for each proposed subrecipient or subcontractor in order to comply with OFAC License No. IA- 8785a. If potential subrecipients or subcontractors are organizations rather than individuals, the above information shall be provided for the organizations' key employees who would be engaged in the project and the organizations' Board of Directors. If the information requested is unavailable, the Recipient shall state that and explain why it is unavailable.

vii. ECA shall receive the information contained in Form DS 4100 before the award of any lower-tier subawards or subcontracts. Upon receipt and deliberation, ECA shall advise the Recipient if the proposed lower-tier subrecipient or subcontractor is approved or disapproved. No lower-tier subawards or subcontracts shall be awarded without the prior written approval of ECA's Grants Officer.

viii. The Recipient shall incorporate the substance of this Special Article in all subawards or subcontracts entered into by the Recipient to further the purposes of this Agreement. The Recipient shall further ensure that the substance of this article is incorporated in all lower-tier subawards or subcontracts related to the Recipient's Agreement.

ix. Failure to fully comply with the requirements of this Special Article could delay the implementation of the Agreement or be grounds for the termination for cause of the Agreement.

17) SPECIFIC CONDITIONS:

N/A

18) SPECIAL PROVISION FOR PERFORMANCE IN A DESIGNATED COMBAT AREA:

N/A

19) STATE DEPARTMENT LEAHY AMENDMENT VETTING REQUIREMENTS:

N/A

20) KEY PERSONNEL

The following are Key Personnel for this award:

Senior Director
Associate Director

Changes in Key Personnel require prior written GO approval in accordance with 2 CFR 200.308(f)(2).

21) AWARD SENSITIVITY DESIGNATION

N/A

22) FUNDING RESTRICTIONS FOR THE UNITED NATIONS RELIEF AND WORKS AGENCY (UNRWA)

None of the funds awarded under this agreement may be made available for subawards, direct financial support, or otherwise used to provide any payment or transfer to United Nations Relief and Works Agency (UNWRA).

23) PROHIBITION ON FUNDING ACTIVITIES THAT ENCOURAGE MASS-MIGRATION CARAVANS TOWARDS THE UNITED STATES SOUTHWEST BORDER

None of the funds awarded under this grant may be made available to encourage, mobilize, publicize, or manage mass-migration caravans towards the United States southwest

border. Funds may not be made available for legal counseling on the United States asylum process; and/or for referrals to legal or representation in the United States.

Funds may only be used for cash cards for use in the country in which they are provided or to facilitate assisted voluntary returns and other purposes that do not encourage, mobilize, publicize, or manage mass migration caravans towards the United States southwest border. The provision of humanitarian assistance is permitted.

24) CERTIFICATION REGARDING COMPLIANCE WITH APPLICABLE FEDERAL ANTI-DISCRIMINATION LAWS

None of the funds awarded under this agreement may be used for any initiatives or programs, or any activities that do not comply with Executive Order 14173 titled Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

By signing the DS-1909 or DS-1909I Federal Assistance Award, the Recipient certifies the following:

1) Its compliance in all respects with all applicable Federal anti-discrimination laws is material to the government's payment decisions for purposes of section 3729(b)(4) of title 31, United States Code and;

2) It does not operate any programs promoting Diversity, Equity, and Inclusion that violate any applicable Federal anti-discrimination laws. A program promoting Diversity, Equity, and Inclusion means a program whose purpose is to promote preferences based on race, color religion, sex, or national origins, such as in training or hiring.

25) CERTIFICATION REGARDING COMPLIANCE WITH 20 U.S.C. 1011F AND ANY OTHER APPLICABLE FOREIGN FUNDING DISCLOSURE REQUIREMENTS

By signing block 18 of the DS-1909 Federal Assistance Award, the Recipient certifies:

Its compliance in all respects with section 1011f of title 20, United States Code, and any other applicable foreign funding disclosure requirements is material for purposes of section 3729 of title 31, United States Code, and for receipt of appropriate Federal grant funds.

Note to Recipient: If you are not an IHE (Institution of Higher Education) this provision is not applicable. This provision must be included in any subaward agreement to an IHE.